

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TIMOTHY NELSON,

PLAINTIFF,

-against-

POLICE OFFICER FRANCIS TWUM,
POLICE OFFICER KEVIN MOCKEL,
POLICE OFFICER DAVID E. SAMMARCO
THE NEW YORK CITY POLICE DEPARTMENT
and THE CITY OF NEW YORK,

DEFENDANTS.
-----X

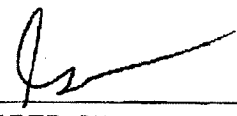
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney, within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of the occurrence as per CPLR Section 504(3).

DATED: New York, New York
June 20, 2016

Yours, etc.

By: 
GREG GARBER, ESQ.
Attorney for Plaintiff
60 Madison Avenue - Suite 1005
New York, N.Y. 10010
(212) 779-2740

Defendants' Addresses:

POLICE OFFICER FRANCIS TWUM (SHIELD 008518)
POLICE OFFICER KEVIN MOCKEL (SHIELD 021076)
POLICE OFFICER DAVID E. SAMMARCO (SHIELD 021947)
c/o 47TH PRECINCT
4111 LACONIA AVE
BRONX, NY 10466

THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT
ONE POLICE PLAZA
NEW YORK, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TIMOTHY NELSON,

Plaintiff,

-against-

POLICE OFFICER FRANCIS TWUM,
POLICE OFFICER KEVIN MOCKEL,
POLICE OFFICER DAVID E. SAMMARCO
THE NEW YORK CITY POLICE DEPARTMENT
and THE CITY OF NEW YORK,

Defendants.
-----X

INDEX NO. 25752/2015

AMENDED
VERIFIED COMPLAINT

PLEASE TAKE NOTICE:

The Plaintiff, TIMOTHY NELSON, by his attorney, GREG GARBER, ESQ. complaining of the above named defendants, respectfully alleges upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL NAMED DEFENDANTS,
THE PLAINTIFF, TIMOTHY NELSON ALLEGES:**

1. That at all times hereinafter mentioned the plaintiff, TIMOTHY NELSON was and still is an individual residing at 1057 Boynton Avenue, Bronx, New York 10472.
2. That at all times hereinafter mentioned and specifically on July 26, 2015, the defendant, THE CITY OF NEW YORK, was and still is a domestic municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned and specifically on July 26, 2015, the defendant, THE CITY OF NEW YORK owned, operated and controlled a police department known as the New York City Police Department.
4. That at all times hereinafter mentioned and specifically on July 26, 2015, the defendant THE NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD") was an agency and department of the CITY OF NEW YORK, with its principal offices located at 1 Police Plaza, New York, N.Y. 10038.
5. That at all times hereinafter mentioned and specifically on July 26, 2015,

the defendant, POLICE OFFICER FRANCIS TWUM was employed by the defendants THE CITY OF NEW YORK and the NYPD to work as a police officer in the NYPD.

6. That at all times hereinafter mentioned and specifically on July 26, 2015, the defendant, POLICE OFFICER KEVIN MOCKEL was employed by the defendants THE CITY OF NEW YORK and NYPD to work as a police officer in the NYPD.

7. That at all times hereinafter mentioned and specifically on July 26, 2015, the defendant, POLICE OFFICER DAVID E. SAMMARCO was employed by the defendant THE CITY OF NEW YORK and NYPD to work as a police officer in the NYPD.

8. That at all times hereinafter mentioned and specifically on July 26, 2015, the defendant, POLICE OFFICER FRANCIS TWUM was acting in the scope of his employment as a police officer for the defendants, THE CITY OF NEW YORK and the NYPD.

9. That at all times hereinafter mentioned and specifically on July 26, 2015, the defendant, POLICE OFFICER KEVIN MOCKEL was acting in the scope of his employment as a police officer for the defendants THE CITY OF NEW YORK and the NYPD.

10. That at all times hereinafter mentioned and specifically on July 26, 2015, the defendant, POLICE OFFICER DAVID E. SAMMARCO was acting in the scope of his employment as a police officer for the defendants, THE CITY OF NEW YORK and the NYPD.

11. Upon information and belief, that at all times herein mentioned and specifically on July 26, 2015, the defendant, POLICE OFFICER FRANCIS TWUM was a Police Officer for defendants CITY OF NEW YORK and the NYPD, attached to the NYPD 47th Precinct, in the County of Bronx, City and State of New York.

12. Upon information and belief, that at all times herein mentioned, and specifically on July 26, 2015, the defendant, POLICE OFFICER KEVIN MOCKEL was a Police Officer for defendants CITY OF NEW YORK and the NYPD, attached to the NYPD 47th Precinct, in the County of Bronx, City and State of New York.

13. Upon information and belief, that at all times herein mentioned and specifically on July 26, 2015, the defendant, POLICE OFFICER DAVID E. SAMMARCO was a Police Officer for defendants CITY OF NEW YORK and the NYPD, attached to the NYPD 47th Precinct, in the County of Bronx, City and State of New York.

14. Upon information and belief, that at all times herein mentioned and specifically on July 26, 2015, the defendant, POLICE OFFICER FRANCIS TWUM was a Police

Officer employed by the defendants THE CITY OF NEW YORK and the NYPD and assigned to the NYPD 47th Precinct, in the County of Bronx, City and State of New York.

15. Upon information and belief, that at all times herein mentioned and specifically on July 26, 2015, the defendant POLICE OFFICER KEVIN MOCKEL was a Police Officer employed by the defendants THE CITY OF NEW YORK and the NYPD and assigned to the NYPD 47th Precinct, in the County of Bronx, City and State of New York.

16. Upon information and belief, that at all times herein mentioned and specifically on July 26, 2015, the defendant, POLICE OFFICER DAVID E. SAMMARCO was a Police Officer employed by the defendants THE CITY OF NEW YORK and the NYPD and assigned to the NYPD 47th Precinct, in the County of Bronx, City and State of New York.

17. That Police Officer POLICE OFFICER FRANCIS TWUM was, on July 26, 2015, at the time and place hereinafter mentioned, a police officer employed by the defendants, THE CITY OF NEW YORK and the NYPD and was acting in the performance of his duties and authority as a NYPD police officer.

18. That Police Officer POLICE OFFICER KEVIN MOCKEL was, on July 26, 2015, at the time and place herein mentioned, a police officer employed by the defendants, THE CITY OF NEW YORK and the NYPD and was acting in the performance of his duties and authority as a NYPD police officer.

19. That Police Officer POLICE OFFICER DAVID E. SAMMARCO was, on July 26, 2015, at the time and place herein mentioned, a police officer employed by the defendants, THE CITY OF NEW YORK and the NYPD and was in the performance of his duties and authority as a NYPD police officer.

20. Upon information and belief, that at all times herein mentioned, the defendants, THE CITY OF NEW YORK and the NYPD, their agents, servants, and/or employees trained, managed, supervised, controlled and instructed the aforementioned defendant police officers.

21. That on the 26th day of July, 2015, the defendant POLICE OFFICER FRANCIS TWUM was on duty and was acting within the scope of his authority as a Police Officer for the defendants, THE CITY OF NEW YORK and the NYPD.

22. That on the 26th day of July, 2015 defendant POLICE OFFICER KEVIN MOCKEL was on duty and was acting within the scope of his authority as a Police Officer for

the defendants, THE CITY OF NEW YORK and the NYPD.

23. That on the 26th day of July, 2015, defendant POLICE OFFICER DAVID E. SAMMARCO was on duty and was acting within the scope of his authority as a Police Officer for the defendants, THE CITY OF NEW YORK and the NYPD.

24. That on or about the 26th day of July, 2015, the Plaintiff TIMOTHY NELSON was approached, harassed, battered, beaten, assaulted, unlawfully detained, falsely imprisoned and falsely arrested by the aforementioned defendant police officers, while he was lawfully in a parked vehicle located at or near the premises known and designated as the Edenwald Houses, located at 1125 East 229th Street, County of Bronx, City and State of New York and continuing thereafter in the 47th Precinct of the NYPD and thereafter at Central Booking, County of Bronx, City and State of New York. More specifically, the aforementioned defendant police officers approached Plaintiff's parked vehicle, handcuffed the Plaintiff, dragged the Plaintiff out of the driver's seat, threw him to the ground and punched and otherwise assaulted and battered the Plaintiff about the head, nose, face and eyes, as well as other parts of his body, with great force and violence. Plaintiff was then taken to the 47th precinct, where he was told to remove all his clothes near the bathroom area, at which time the desk sergeant said, "This is where the real pain starts." At the precinct, the Plaintiff was punched in the ribs and stomach, as well as other parts of his body by both undercover police officers and otherwise battered and assaulted.

25. The Plaintiff was falsely arrested by the defendant police officers.

26. The Plaintiff was falsely imprisoned by the defendant police officers.

27. The Plaintiff was falsely and maliciously prosecuted by the defendants following his unlawful arrest and imprisonment.

28. That on or about the 26th day of July, 2015, the Plaintiff was battered, beaten, assaulted, unlawfully detained, falsely imprisoned and falsely arrested, and maliciously prosecuted, due to the negligence, culpable conduct, carelessness and recklessness of the defendant police officers and defendants THE CITY OF NEW YORK and the NYPD, in failing to properly hire, supervise and train its police officers herein, as a result of which the Plaintiff herein was caused to sustain serious and permanent personal injuries.

29. That on or about the 26th day of July, 2015, due to the willful and malicious conduct of defendant police officers, the Plaintiff was caused to sustain serious and

permanent personal injuries.

30. That all of the foregoing occurred solely as a result of the carelessness, recklessness, culpable conduct and negligence of the defendants in failing to properly hire, supervise and train its police officers, including the defendant police officers named herein, in that they failed to properly monitor, supervise and control the activities of their police officers and more specifically the police officers named herein; in inadequately and improperly supervising and controlling the activities of their police officers and more specifically the police officers named herein; in negligently and carelessly becoming abusive, belligerent, assaultive, and unruly; in failing to employ competent personnel; in negligently, carelessly and recklessly assaulting, attacking and abusing the Plaintiff; in negligently using excessive force; in violating the applicable rules, statutes and ordinances which govern the activities of the defendant police officers, their agents, servants, and/or employees and in otherwise being negligent in the premises.

31. In doing and committing all the acts and things aforesaid defendants, THE CITY OF NEW YORK and the NYPD, their agents, servants and/or employees acted carelessly and negligently in failing to properly hire, train and supervise its police officers.

32. That before, during and after the aforementioned incident, the Plaintiff was assaulted by the defendants, POLICE OFFICER FRANCIS TWUM, POLICE OFFICER KEVIN MOCKEL and POLICE OFFICER DAVID E. SAMMARCO by unlawfully and intentionally menacing and otherwise touching him without justification, excuse or consent.

33. In doing all the acts and things aforesaid defendants acted negligently in failing to use such care in the performance of police duties as reasonable prudent and careful police officers would have used under similar circumstances.

34. That by reason of the foregoing, the Plaintiff was caused to and sustain severe, painful and serious personal injuries in and about his head, limbs and body; became sick, sore, lame and disabled; was caused to suffer contusions, abrasions, lacerations, dislocations and sprains; was caused to suffer a severe shock to his nervous system and certain internal injuries; was caused to suffer and still continues to suffer great physical pain, mental anguish and bodily injuries; was confined to a hospital, bed and home for a long period of time; was compelled to undergo hospital and medical aid, treatment and attention and to expend diverse sums of money for same; the Plaintiff was greatly injured both bodily and mentally; has been prevented from

engaging in his usual activities for a long period of time, all with attendant losses and since some of said injuries are of a permanent and long lasting nature, and upon information and belief he will continue to suffer continuous pain, suffering, inconvenience, loss of enjoyment of life, and damage in the future.

35. That heretofore and more specifically on the 4th day of August, 2015, a verified statement of the Plaintiff's claim and notice of intention to sue herein was duly served upon THE CITY OF NEW YORK and said verified statement of the Plaintiff's claim and notice of intention to sue, were so served within ninety (90) days of the happening of this accident as is provided by the applicable provisions of the General Municipal Law of the State of New York.

36. That said verified statement of the Plaintiff's claim included, among other things, the name and address of the Claimant, the name and post office address of the Plaintiff's attorney, the nature of the claim, the place and manner in which the claim arose and the items of damage for the injuries claimed at the time to have been sustained.

37. That at least thirty (30) days have elapsed since the verified statement of the Plaintiff's claim and notice of intention to sue herein referred to was served upon the defendant CITY OF NEW YORK and the defendant CITY OF NEW YORK has failed to make an adjustment of payment thereof and this action has been commenced within one (1) year and ninety (90) days of the cause of action herein alleged had occurred.

38. That at least thirty (30) days have elapsed since the verified statement of the Plaintiff's claim and notice of intention to sue herein referred to was served upon the defendant, THE CITY OF NEW YORK, and defendant CITY OF NEW YORK has failed to schedule an oral examination (50h hearing) or a physical examination of the Plaintiff, but that notwithstanding, the Plaintiff remains ready, willing and able to attend, if timely scheduled.

39. That the amount of said damages sustained by the Plaintiff as a result of the aforesaid serious and permanent personal injuries and pecuniary losses are in a substantial sum of money to be determined by the Court and jury.

40. That as a result of the foregoing facts and circumstances, the Plaintiff TIMOTHY NELSON alleges that he is entitled to money damages against all of the defendants, jointly, as well as severally, in such amounts that exceed the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

41. This action, as well as all causes of action pleaded herein, falls within one

or more of the exceptions set forth in CPLR ss1602.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST ALL NAMED
DEFENDANTS THE PLAINTIFF TIMOTHY NELSON ALLEGES:**

42. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint designated "1" through "41" hereof, with the same force and effect as if herein fully set forth at length.

43. That the defendants CITY OF NEW YORK and the NYPD were in charge of and controlled the employment, hiring and training and supervision of its police officers, including the three defendant police officers herein..

44. That accordingly, the defendant CITY OF NEW YORK and the NYPD had an obligation to use reasonable care in the hiring, employment, training and supervision of its police officers, including the three defendant police officers herein.

45. That in arresting the Plaintiff on July 26, 2015, the defendant police officers, POLICE OFFICER FRANCIS TWUM, POLICE OFFICER KEVIN MOCKEL and POLICE OFFICER DAVID E. SAMMARCO acted in such a manner so as to constitute gross negligence and under such circumstances as to show heedlessness and utter disregard of the result upon the rights and safety of others and more particularly the Plaintiff herein.

46. That the defendant police officers were careless and negligent in the manner in which they arrested the Plaintiff on July 26, 2015.

47. That in doing all the acts and things as aforesaid, the defendant police officers acted negligently in failing to use such reasonable care in the performance of police duties as reasonable prudent and careful police officers would have used under similar circumstances.

48. That in doing all the acts and things aforesaid the defendants, THE CITY OF NEW YORK and the NYPD, their agents servants and/or employees, were careless and negligent in failing to properly hire and train its police officers, including the three defendant police officers involved herein.

49. That as a result of the carelessness and negligence of the CITY OF NEW YORK and the NYPD, the Plaintiff was seriously and permanently injured.

50. That as a result of the aforesaid facts and circumstances, the Plaintiff is

entitled to money damages against the defendant police officers and the defendant CITY OF NEW YORK and the NYPD, in such amounts that are in excess of the monetary limitations of all lower Courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE NAMED DEFENDANTS
PLAINTIFF TIMOTHY NELSON ALLEGES:**

51. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs designated "1" through " 50" of this complaint, with the same force and effect as if herein fully set forth at length.

52. On the 26th day of July, 2015 the defendant POLICE OFFICER FRANCIS TWUM assaulted the Plaintiff, by while having the real and apparent ability to cause imminent harmful and offensive bodily contact to the Plaintiff, intentionally performed violent and menacing acts which threatened such contact to the Plaintiff and committed an assault upon the Plaintiff because such acts by the defendant POLICE OFFICER FRANCIS TWUM caused the Plaintiff to have apprehension of such contact.

53. On the 26th day of July, 2015 defendant police officer POLICE OFFICER KEVIN MOCKEL assaulted the Plaintiff, by while having the real and apparent ability to cause imminent harmful and offensive bodily contact to the Plaintiff, intentionally performed violent and menacing acts which threatened such contact to the Plaintiff and committed an assault upon the Plaintiff because such acts by the defendant police officer POLICE OFFICER KEVIN MOCKEL caused the Plaintiff to have apprehension of such contact.

54. On the 26th day of July, 2015 defendant police officer POLICE OFFICER DAVID E. SAMMARCO assaulted the Plaintiff by while having the real and apparent ability to cause imminent harmful and offensive bodily contact to the Plaintiff, intentionally performed violent and menacing acts which threatened such contact to the Plaintiff and committed an assault upon the Plaintiff because such acts by the defendant police officer POLICE OFFICER DAVID E. SAMMARCO caused the Plaintiff to have apprehension of such contact.

55. In doing all the acts and things aforesaid and committing the aforementioned assaults upon the Plaintiff, the defendant police officers acted intentionally, wilfully and maliciously.

56. Defendants, POLICE OFFICER FRANCIS TWUM, POLICE OFFICER

KEVIN MOCKEL and POLICE OFFICER DAVID E. SAMMARCO, were acting in the scope of their employment as police officers for the defendants, THE CITY OF NEW YORK and the NYPD at the time they committed the aforementioned assaults upon the Plaintiff.

57. That as a result of the aforementioned assaults committed by the three defendant police officers against the Plaintiff, the Plaintiff was seriously and permanently injured.

58. That as a result of the aforesaid assaults, the Plaintiff is entitled to damages against the defendants, jointly, as well as severally, in such amounts that exceed the jurisdictional limits of all lower Courts which would otherwise have jurisdiction over this matter.

59. That in as much as the aforesaid assaults committed by the defendant police officers upon the Plaintiff were malicious, wanton and intentional, the Plaintiff is entitled to punitive damages as against the individual police officer defendants.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE NAMED
DEFENDANTS PLAINTIFF TIMOTHY NELSON ALLEGES:**

60. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs designated "1" through "59" of this complaint, with the same force and effect as if herein fully set forth at length.

61. That the defendant POLICE OFFICER FRANCIS TWUM committed a battery upon the Plaintiff on July 26, 2015, when, in an intentional, hostile and offensive manner, he touched the Plaintiff without the Plaintiff's consent and with the specific intention of causing harmful and offensive bodily contact to the Plaintiff.

62. That the defendant police officer POLICE OFFICER KEVIN MOCKEL committed a battery upon the Plaintiff on July 26, 2015, when, in an intentional, hostile and offensive manner, he touched the Plaintiff without the Plaintiff's consent and with the specific intention of causing harmful and offensive bodily contact to the Plaintiff.

63. That the defendant police officer POLICE OFFICER DAVID E. SAMMARCO committed a battery upon the Plaintiff on July 26, 2015, when, in an intentional, hostile and offensive manner, he touched the Plaintiff without the Plaintiff's consent and with the specific intention of causing harmful and offensive bodily contact to the Plaintiff. ✓

64. That as a result of the aforesaid battery committed by the defendant police

officer defendants upon the person of the Plaintiff, the Plaintiff was seriously and permanently injured.

65. That Plaintiff is entitled to money damages against the defendant police officer defendants, jointly, as well as severally, in such amounts that are in excess of the monetary limitations of all lower Courts that would otherwise have jurisdiction over this matter.

66. That in as much as the aforesaid battery committed by the defendant police officers upon the Plaintiff was malicious and intentional, the Plaintiff is entitled to punitive damages against the defendant police officers, jointly, as well as severally, in addition to all other monetary damages that the Plaintiff is entitled to.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE NAMED DEFENDANTS
PLAINTIFF TIMOTHY NELSON ALLEGES:

67. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned in paragraphs designated "1" through "66" of this complaint, with the same force and effect as if herein fully set forth at length.

68. That on the 26th day of July, 2015, the defendant POLICE OFFICER FRANCIS TWUM used excessive and unreasonable force upon the Plaintiff in the course of his illegal arrest of the Plaintiff.

69. That on the 26th day of July, 2015, the defendant police officer POLICE OFFICER KEVIN MOCKEL used excessive and unreasonable force upon the Plaintiff in the course of his illegal arrest of the Plaintiff.

70. That on the 26th day of July, 2015, the defendant police officer POLICE OFFICER DAVID E. SAMMARCO used excessive and unreasonable force upon the Plaintiff in the course of his illegal arrest of the Plaintiff.

71. That as a result of the aforesaid use of excessive and unreasonable force used by the defendant police officers against the Plaintiff, the Plaintiff was seriously and permanently injured.

72. That as a result of the aforesaid, the Plaintiff is entitled to money damages against the defendants police officers, jointly, as well as severally, in such amounts that exceed the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST THE NAMED DEFENDANTS
PLAINTIFF TIMOTHY NELSON ALLEGES:**

73. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned in paragraphs designated "1" through "72" of this complaint, with the same force and effect as if herein fully set forth at length.

74. That at all times hereinafter mentioned and specifically on July 26, 2015, the defendant police officers acted under color of law and without lawful authority or right and did violate Plaintiff's constitutional rights guaranteed under the Fourth, Fifth and Fourteenth Amendments of the Federal Constitution in violation of 28 U.S.C. 1983, as well as other applicable Federal and State laws.

75. That by reason of the violation of the Plaintiff's civil rights as aforesaid, the Plaintiff is entitled to compensatory and punitive damages, as well as attorney's fees as against the defendants, jointly, as well as severally, the amount of which exceeds the jurisdiction limitations of all lower Courts that might otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST THE NAMED
DEFENDANTS PLAINTIFF TIMOTHY NELSON ALLEGES:**

76. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned in paragraphs designated "1" through "75" of this complaint, with the same force and effect as if herein fully set forth at length.

77. That on July 26, 2015, the defendant POLICE OFFICER FRANCIS TWUM falsely imprisoned and arrested the Plaintiff in that he intentionally and without authority, detained the Plaintiff against the Plaintiff's will and thereby deprived the Plaintiff of his liberty.

78. That on July 26, 2015, the defendant police officer POLICE OFFICER KEVIN MOCKEL falsely imprisoned and arrested the Plaintiff in that he intentionally and without authority, detained the Plaintiff against the Plaintiff's will and thereby deprived the Plaintiff of his liberty.

^{79.} That on July 26, 2015, the defendant police officer POLICE OFFICER DAVID E. SAMMARCO falsely imprisoned and arrested the Plaintiff in that he intentionally

and without authority, detained the Plaintiff against the Plaintiff's will and thereby deprived the Plaintiff of his liberty.

80. That the Plaintiff was aware and conscious of this false imprisonment and false arrest committed by the defendant police officers.

81. That the Plaintiff did not consent to the aforesaid false imprisonment and false arrest committed upon him by the defendant police officers.

82. That the three defendant police officers did not have reasonable grounds to falsely imprison and falsely arrest the Plaintiff on July 26, 2015.

83. That Plaintiff is entitled to money damages against the police officer defendants, jointly, as well as severally, in such amounts that are in excess of the monetary limitations of all lower Courts that would otherwise have jurisdiction over this matter.

84. That in as much as the aforesaid false imprisonment and false arrest committed by the defendant police officers upon the Plaintiff was malicious and intentional, the Plaintiff is entitled to punitive damages against the defendant police officers, jointly, as well as severally, in addition to all other monetary damages that the Plaintiff is entitled to.

**AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST THE NAMED
DEFENDANTS THE PLAINTIFF TIMOTHY NELSON ALLEGES**

85. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned contained in paragraphs designated "1" through "84" of this complaint, with the same force and effect as if herein fully set forth at length.

86. That following the wrongful and illegal false imprisonment and false arrest of the Plaintiff committed by the three defendant police officers as aforesaid, the Plaintiff was thereafter maliciously prosecuted.

87. This malicious prosecution was caused by and initiated by the wrongful, tortious and illegal acts of the three defendant police officers as aforesaid.

88. The defendants did not have probable cause to believe that the Plaintiff was guilty of any crime at the time the Plaintiff was wrongfully prosecuted.

89. The defendant police officers, as well as the defendants CITY OF NEW YORK and the NYPD acted in bad faith in initiating the criminal prosecution against the

Plaintiff.

90. The criminal prosecution against the Plaintiff was completely dismissed in favor of the Plaintiff.

91. The criminal prosecution initiated by the defendants as against the Plaintiff was done wantonly, maliciously and in bad faith.

92. That as a result of the foregoing, the Plaintiff is entitled to money damages against the police officer defendants, jointly, as well as severally, in such amounts that are in excess of the monetary limitations of all lower Courts that would otherwise have jurisdiction over this matter.

93. That in as much as the aforesaid battery committed by the defendant police officers upon the Plaintiff was malicious and intentional, the Plaintiff is entitled to punitive damages against the defendant police officers, jointly, as well as severally, in addition to all other monetary damages that the Plaintiff is entitled to.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
TIMOTHY NELSON AGAINST ALL NAMED DEFENDANTS

94. The Plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned contained in paragraphs designated "1" through "93" of this complaint, with the same force and effect as if herein fully set forth at length.

95. That on July 26, 2015, the three defendant police officers acted as aforesaid solely to harm the Plaintiff and did so intentionally and without justification.

96. As a result of this prima facie and intentional tort, the Plaintiff has suffered and continues to suffer pecuniary damages.

97. That Plaintiff is entitled to money damages against the defendant police officers, jointly, as well as severally, in such amounts that are in excess of the monetary limitations of all lower Courts that would otherwise have jurisdiction over this matter.

98. That in as much as the aforesaid intentional prima facie tortuous acts committed by the defendant police officers upon the Plaintiff was malicious and intentional, the Plaintiff is entitled to punitive damages against the defendant police officers, jointly, as well as severally, in addition to all other monetary damages that the Plaintiff is entitled to.

WHEREFORE, the Plaintiff, **TIMOTHY NELSON**, demands judgment against the defendants **POLICE OFFICER FRANCIS TWUM**, **POLICE OFFICER KEVIN MOCKEL** and **POLICE OFFICER DAVID E. SAMMARCO**, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, jointly, as well as severally, on the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth and Ninth Causes of Action against them, in such amounts which exceed the jurisdiction limits of all lower Courts which would otherwise have jurisdiction over this action, in addition to punitive damages to be determined by this Court, together with interest, costs, and disbursements to herein, as well as reasonable attorney's fees as provided for in 42 USC 1983, as well as attorney's fees because of the intentional, wanton and malicious acts of the defendants as aforesaid.

DATED: New York, New York
June 20, 2016

Yours, etc.

By: 

GREG GARBER, ESQ.
Attorney for Plaintiff
TIMOTHY NELSON
60 Madison Avenue - Suite 1005
New York, N.Y. 10010
(212) 779-2740

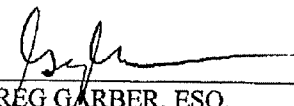
ATTORNEY VERIFICATION

I, the undersigned an attorney admitted to practice in the Courts of the State of New York, state that I am the attorney of record for the plaintiff, TIMOTHY NELSON in the within action; I have read the foregoing SUMMONS AND VERIFIED COMPLAINT, and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not the plaintiff is that the plaintiff resides in a county other than where your affirmant maintains his law office.

The grounds of my belief, as to all matters not stated upon my own knowledge are as follows: review of file.

I affirm that the foregoing statements are true under penalties of perjury.

Dated: New York, New York
June 20, 2016



GREG GARBER, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TIMOTHY NELSON,

PLAINTIFF,

-against-

POLICE OFFICER FRANCIS TWUM,
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THE NEW YORK CITY POLICE DEPARTMENT
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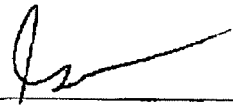
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CERTIFICATION

GREG GARBER, ESQ., an attorney duly admitted to practice law before the Courts of the State of New York, hereby certifies in accordance with 22 NYCRR Part 130-1.1-a of the Rules of the Chief Administrator that to the best of my knowledge, information and belief, which was formed upon personal knowledge of the facts and events that occurred and after a reasonable inquiry under the circumstances, the presentation of the AMENDED SUMMONS AND AMENDED VERIFIED COMPLAINT and its contents are not frivolous, as the term is defined in Part 130.

DATED: New York, New York
June 20, 2016

Yours, etc.

By: 

GREG GARBER, ESQ.
Attorney for Plaintiff
TIMOTHY NELSON
60 Madison Avenue - Suite 1005
New York, N.Y. 10010
(212) 779-2740

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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

TIMOTHY NELSON,

PLAINTIFF,

-against-

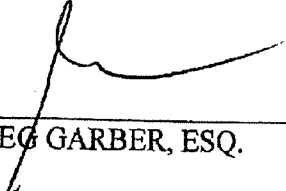
**POLICE OFFICER FRANCIS TWUM,
POLICE OFFICER KEVIN MOCKEL,
POLICE OFFICER DAVID E. SAMMARCO
THE NEW YORK CITY POLICE DEPARTMENT
and THE CITY OF NEW YORK,**

DEFENDANTS.

AMENDED SUMMONS AND AMENDED VERIFIED COMPLAINT

**GREG GARBER, ESQ.
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Signature Pursuant to Rule 130.1.1.-a


GREG GARBER, ESQ.
